

DEPARTMENT OF VETERANS AFFAIRS
Justification and Approval For
Exception to Fair Opportunity Memo
Acquisition Plan No: 36C242-26-AP-1830

1. Contracting Activity:

Department of Veterans Affairs, VISN 2, Syracuse VA Medical Center

2237: 528-26-2-7272-0008

2. Description of Action:

The proposed action is for the issuance of a new sole source procurement to Microtechnologies, LLC for the installation and integration of commercial software products, software licenses and technical support. The proposed order is anticipated to be firm-fixed price with a base period and four (4) one-year options for the software licenses and technical solutions services. The proposed order will be placed against NASA SEWP Contract #NNG15SC42B held by Microtechnologies, LLC.

3. Description of Supplies or Services:

The proposed action is to acquire and implement an advanced capture solution at the Syracuse VA Medical Center to streamline administrative workflows and improve Veteran care. The solution combines Advanced Capture technology to automatically process and classify incoming documents and Robotic Process Automation (RPA) to upload documentation to CPRS/VistA, reducing manual effort and errors. The contractor will provide full professional services, including design, implementation, testing, training, and ongoing support through a dedicated Technical Application Support Specialist (TASS). This initiative will accelerate clinical decision-making, enhance operational efficiency, reduce backlogs, and improve employee satisfaction while aligning with VA modernization goals. The total estimated value of this acquisition is \$2,337,240.98, consisting of a Base Period, plus four (4) 1-year options. The base period includes installation services and custom end user training resulting in a higher front end cost.

Coverage	Period	Estimated Value
Base Period	04/15/2026 – 03/31/2027	\$733,452.70
Option Year 1	04/01/2027 – 03/31/2028	\$389,710.80
Option Year 2	04/01/2028 – 03/31/2029	\$396,957.88
Option Year 3	04/01/2029 – 03/31/2030	\$404,565.46
Option Year 4	04/01/2030 – 03/31/2031	\$412,554.14

4. **Statutory Authority:** The statutory authority permitting an exception to fair opportunity is Section 41 U.S.C. 4106(c) as implemented by the Federal Acquisition Regulation (FAR) RFO 16.507-6(b):

(X) FAR RFO 16.507-6(b)(2): Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

5. **Rationale Supporting Use of Authority Cited Above:**

Implementation of this solution is critical to support the staff in Community Care and allow them to focus on patient care. The combination of Ephesoft Transact and Nintex RPA provides a seamless, integrated solution for document automation and workflow orchestration. Market research identified Microtechnologies, LLC as the only vendor offering both software platforms under a single procurement vehicle with FedRAMP and TRM compliance. With both software solutions under a single procurement vehicle, it significantly streamlines the acquisition process by reducing administrative burden, procurement timelines, and associated costs. Secondly, having both software solutions under a single contractual framework will allow Program Managers and Contracting Officers to manage performance, compliance, and vendor accountability through a single contract. Lastly, it supports consistency in security compliance, and support as a single vendor can provide uniform updates and maintenance practices across both solutions. Microtechnologies, LLC offers bundled pricing, reducing total cost of ownership and simplifying contract management. Other vendors offer one or the other solution, but not both under a single contract with implementation services as well. If another provider is selected, additional risk would be incurred as the new vendor's staff would have to design and implement the solution from the very beginning, resulting in critical delays to patient care.

6. **Efforts to Obtain Competition:**

Market research was conducted, details of which are in the market research section of this document. This effort did not yield any additional sources that can meet the Government's requirements. There is no competition anticipated for this acquisition. In accordance with FAR RFO 5.301 and FAR RFO 16.507-6(f), this action will be synopsisized at award on the Federal Business Opportunities Page (FBO) and the justification will be made publicly available.

7. **Actions to Increase Competition:**

To promote competition in future acquisitions, the following actions will be taken:

- Conduct regular market research to identify new vendors and emerging technologies.
- Consider issuing a Request for Information (RFI) to assess industry capabilities.
- Evaluate the feasibility of using a Blanket Purchase Agreement (BPA) or Indefinite Delivery/Indefinite Quantity (IDIQ) contract to allow multiple vendors to compete.
- Encourage participation from small businesses and SDVOSBs through targeted outreach and set aside opportunities.

8. Market Research:

Market Research was conducted via:

- FedRAMP Marketplace:
 - o Ephesoft is FedRAMP compliant via AWS.
 - o Nintex Automation Cloud is FedRAMP authorized.
- VA Technical Reference Model (TRM):
 - o Both Ephesoft and Nintex RPA are approved for use within VA.
- NASA SEWP:
 - o Contract Number: NNG15SC42B
 - o Contractor: Ricoh USA, Inc. (Provider) / Microtechnologies LLC (Contract Holder)
 - o Group: D
 - o NAICS: 541519
- VOSB/SDVOSB:
 - o Ricoh partners with SDVOSB entities such as Microtechnologies for SEWP access.

FPDS was searched using keywords “Nintex” filtered by date signed. This search produced over 600 results on FPDS. This search was then filtered by VA agency which produced 56 results. Next, FPDS was searched again using keywords “Ephesoft” which produced 91 results. This search was then filtered by VA agency which produced 7 results. Between the two software applications, common vendors include Microtechnologies LLC, Ricoh USA INC, New Tech Solutions INC, Architecture Solutions LLC, Software Information Resource CORP, Redhawk IT Solutions LLC, and IGOV Technologies INC. FPDS was used to obtain NAICS code 541519 and PSC 7A21.

GSA was searched using keywords “NINTEX RPA” which produced relevant results. These results produce two sources, which are Docpoint Solutions LLC, and Four LLC, both are Large Business. GSA was searched using keywords “EPHESOFT Transact” which produced relevant results. These results produce only one source, which is Government Marketing and Procurement LLC, a SDVOSB.

SBA was searched using NAICS code 541519 filtered by keywords “NINTEX” which produced 7 SBs. SBA was searched using NAICS code 541519 filtered by keywords “EPHESOFT” which produced 4 SBs. SBA was searched for SDVOSBs using NAICS code 5419519 filtered by keywords “NINTEX or EPHESOFT” which produced 0 results. SBA was searched for VOSBs using NAICS code 541519 filtered by keywords “NINTEX or EPHESOFT” which produced 0 results.

ADDSUP was searched using keywords “NINTEX” which produced relevant results. Most awards utilized NASA SEWP for procurement of these software solutions. ADDSUP was searched using keywords “EPHESOFT Transact” which produced 1 relevant result.

NASA SEWP was searched using the following product numbers: SLA-IPAC-1M-PLT-1-PS1, PS-INSEPHESOFT, PS-TIMEBLOCK12-ECM, PS-PMO-12-BPM, MRR-PS-TAMT-ADV, RPAPKGEXP25-PS1, and MRR-PS-TAMT-ADV. These searches all produced results from a single source “Microtechnologies LLC, dba Microtech”. Product number EUT-MFP-CUS-REMOTE for custom end user remote training was searched and did not produce any result.

Attachment 1: Request for Exception to Fair Opportunity Memo Format

NASA SEWP was searched for the vendor Microtechnologies. Microtechnologies holds NASA SEWP contract NNG15SC42B under NAICS code 541519.

SAM was searched for the vendors Microtechnologies. The vendor has an active registration. There are no active exclusions, but one inactive exclusion that was terminated on 1/28/2014. SBA was used to verify that Microtechnologies is a SDVOSB.

Market research confirmed that EPHESOFT is FedRAMP compliant, and that NINTEX RPA is FedRAMP authorized. Both EPHESOFT and NINTEX RPA are approved for use within the VA. Market research also identified Microtechnologies as the only vendor offering both software platforms under a single procurement vehicle (NASA SEWP) with FedRAMP and TRM compliance. Other vendors offer one or the other solution, but not both under a single contract with implementation services. FITARA approval has been received.

9. Other Facts:

None.

10. Technical and Requirements Certification: I certify that the supporting data under my cognizance, which are included in this justification, are accurate and complete to the best of my knowledge and belief.

SARAH
LINNERTZ
Digitally signed by SARAH
LINNERTZ
Date: 2026.03.16 11:03:48
-04'00'

Sarah Linnertz
Administrative Officer
Syracuse VA Medical Center

Date

11. Determination that Anticipated Cost is Fair and Reasonable: A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable:

Product pricing on the SEWP contract has already been determined fair and reasonable. The Contracting Officer will verify that quoted pricing does not exceed SEWP contract catalog pricing. Additionally, market research and comparison to the Independent Government Cost Estimate (IGCE) will also assist in determining that the anticipated cost is fair and reasonable.

12. Contracting Officer's Certification (required): I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

**COREY
SWINTON** Digitally signed by
COREY SWINTON
Date: 2026.03.24
07:44:52 -04'00'

Corey Swinton
Contracting Officer
NCO 2

Date

13. Approvals in accordance with [VHAPG Part 816.505 Indefinite Delivery Contracts: Ordering](#).

- a. One Level Above the Contracting Officer (Required over SAT but not exceeding \$900K):** I certify the justification meets requirements for other than full and open competition.

ANTHONY MURRAY Digitally signed by ANTHONY MURRAY
Date: 2026.03.20 06:58:53 -04'00'

Anthony Murray
NCO 2 Division Chief, Division 1

Date

HIGHER LEVEL APPROVAL (Required for orders over \$900,000 to \$20Million):

- b. VHA Advocate for Competition/Head of Contracting Activity (HCA) REVIEW AND APPROVAL:**
I have reviewed the foregoing justification and find it to be complete and accurate to the best of my knowledge and belief and approve for other than full and open competition.

Gerald F. Jacobs
Executive Director, Regional Procurement Office East
VHA Head of Contracting Activity (HCA)

Date